

26SMCV02319 26SMCV02319

County: los-angeles

Division: Civil Law and Motion

Department: 207

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TENTATIVE

RULING

DEPARTMENT

207

HEARING DATE

August

5, 2026

CASE NUMBER

26SMCV02319

MOTION

Motion

for Attorneys' Fees

MOVING PARTY

Plaintiff Christopher Ho

OPPOSING PARTY

Defendant

Tesla Motors, Inc.

MOTION

This case arises from allegations that manufacturer Defendant Tesla Motors, Inc. ("Defendant" or "Tesla") sold to Plaintiff Christopher Ho ("Plaintiff") a defective 2024 Tesla Cybertruck and failed to repair the defects or replace the vehicle in violation of the Song-Beverly Act.

On April 27, 2026, Plaintiff filed suit against Defendant, alleging three causes of action under the Song-Beverly Act for (1) breach of implied warranty; (2) breach of express warranty; and (3) breach of section 1793.2.

Plaintiff filed a Notice of Settlement of Entire Case on July 6, 2026.

Plaintiff

now moves to recover reasonable costs, attorneys' fees, and expenses pursuant to the Song-Beverly Act, in the amount of \$7,307.60, composed of \$3,697.50 incurred in attorneys' fees, a 1.1 multiplier enhancement of \$369.75; \$740.35 in costs and expenses; and \$2,500 in attorneys' fees incurred in connection with the instant motion. Defendant opposes the motion and Plaintiff replies.

ANALYSIS

Code of Civil Procedure

section 1033.5, which outlines recoverable costs to a prevailing party under Code of Civil Procedure section 1032, permits the recovery of attorneys' fees when authorized by contract, statute or law.
(Code Civ. Proc., § 1033.5, subd. (a)(10).)

Civil Code section 1794,

subdivision (d) provides: "If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action."

Defendant does not contest that Plaintiff is entitled to recover reasonable attorneys' fees, costs, and expenses under the Song-Beverly Act. Instead, Defendant argues that the requested fees are excessive; fees for the instant motion are not authorized by the settlement agreement; counsel's billing rate is inflated; and a multiplier is unwarranted.

I.
Reasonableness
of Fees

Plaintiff's counsel seeks \$3,697.50 in attorneys' fees actually incurred, representing 8.7 hours of time at billed at a rate of \$425 per hour. (Barahmand Decl. ¶ 5 and Ex. B.)

Defendant argues this is excessive in a case where the only work done was to file a stock complaint, prematurely propound template discovery, and accept a repurchase offer one month after the Complaint was filed. (Kuredjian Decl. ¶ 11.)

Specifically, Defendant points out that the complaint filed in this matter is nearly identical to a complaint filed in another matter in 2024, and therefore should not have taken 1.2 hours to prepare. (Compare Kuredjian Decl. ¶ 3 Ex. B1 with Ex. B2.)

The Court agrees with Defendant that only 30 minutes is reasonable to make the changes to the template complaint and that a fee cut of \$510, representing 1.2 hours, is warranted.

Defendant also challenges 0.1 of 0.2 hours claimed for counsel's time spent to "draft, file, and serve Plaintiff's Notice of Settlement" on the ground that filing is clerical work, not recoverable at the attorney fee rate. The Court finds this time negligible and that reductions are not warranted.

Defendant also argues that the settlement agreement excludes attorneys' fees incurred in connection with the instant motion. The agreement provides:

In addition to the above, Tesla shall pay
Releasing Party's attorney's fees, costs and expenses to date

that have been reasonably incurred in an amount to be determined by way of a noticed single noticed motion, unless the Parties can agree on the amount of fees to be paid absent such a motions....

(Kuredjian

Decl. ¶ 10 and Ex. C, emphasis added.)

In reply, Plaintiff asserts that attorneys' fees incurred in connection with the fee motion itself are recoverable. On this point, the Court agrees with Plaintiff. Although the settlement agreement expressly provides that Tesla shall pay attorneys' fees, costs, and expenses occurred to date, it does not otherwise indicate that Plaintiff agrees to waive fees incurred in connection with the fee motion, which are otherwise recoverable by operation of law.

Notwithstanding, the Court finds \$2,500 excessive and reduces the amount sought by \$800.

In total, the Court reduces the Attorneys' fees requested by \$1,310.

II.

Billing

Rate

In support of the \$425 billing rate, Plaintiff advances the Declaration of Navid Barahmand, which provides:

11. I am aware of the hourly rates of other attorneys in California who work in the area of lemon law and consumer law. An hourly rate of \$425.00 for myself is consistent with other attorneys who litigate consumer matters and who have my level of experience. I am counsel of record and lead counsel for Plaintiff. I routinely charge that rate, and that rate is routinely paid in most consumer claims that I have resolved. Notably, Plaintiff's retainer agreement provides Plaintiff's counsel bills at an hourly rate of \$425.00. I believe that these rates are reasonable and customary charges. Additionally, I have litigated Song-Beverly Act cases at my own firm for over 4 years.

(Barahmand
Decl. ¶ 11.)

In opposition, Defendant advances
the competing attorney Declaration of Aram Kuredjian, which provides:

13. It is common for Defense firms like mine to
typically charge approximately \$200- \$275/hour in warranty defense litigation.
This includes seasoned practitioners with as much as thirty years of trial
experience

14. On July 21, 2026, I navigated to the website
for the State Bar of California at calbar.ca.gov and entered Navid Barahmand in
the space provided to “Look Up a Lawyer”. One result was returned and it
indicated that Navid Barahmand with Bar No. 340934 was admitted to the state
bar on December 1, 2021.

15. Attached as Exhibit D is a true and correct
copy of the ruling in *Berumen v MBUSA*, Los Angeles Superior Court Case No.
22CHCV01007, where the Court reduced the rates for the partner and senior
counsel who billed on the case to \$400.00 per hour.

16. Attached as Exhibit E is a true and correct
copy of the tentative ruling and minute order adopting the tentative ruling on
Plaintiff’s Motion for Attorneys’ Fees in *Fernando Cervantes v. Tesla Motors*,
Inc., where the Court reduced all of another plaintiff’s counsel’s hourly rates
to \$250 per hour.

17. Attached as Exhibit F1 is a true and correct
copy of the tentative ruling on Plaintiff’s Motion for Attorneys’ Fees in the
Zeledon v. MBUSA matter, where the Court awarded \$12,655.03 out of the
\$29,430.03 requested by Plaintiff’s Counsel and reduced Plaintiff’s counsel’s
hourly rates to \$395.00 per hour. Attached as Exhibit F2 is a true and correct
copy of the court’s order adopting the tentative ruling *Zeledon*.

18. Attached hereto as Exhibit G is the Order on
Plaintiffs’ Motion for Attorneys’ Fees in *Arias v. Ford Motor Company*, No.
5:18-cv-01928-PSG-SP, (C.D. Cal. Jan. 27, 2020) (ECF Dkt 50). In this case, the
Court found that “counsel’s requested rate of between \$350 and \$650 for
partners and between \$250 and \$450 for associates outpaces the prevailing rate

for similar work” and reduced the rates for partners to \$325 and reduced the rates of associates to \$225.

19. Attached hereto as Exhibit H is the Order on Plaintiffs’ Motion for Attorneys’ Fees in *Di Gioia v. Ford Motor Company*, No. 5:18-cv-01724-JGB-KK, (2020 WL 1955311) (C.D. Cal. Apr. 1, 2020) (ECF Dkt 56). In this case, the Court adjusted the rate for partners to \$325, and the rate for associates to \$225.

20. Attached hereto as Exhibit I is the Order on Plaintiffs’ Motion for Attorneys’ Fees in *Poore et al v Hyundai Motor America* Orange County Sup. Ct. case No. 30-2022-01253785-CUBC-CJC. Hon. Lee Gabriel reduced the rates of Plaintiff’s counsel rates from \$350-\$550 per hour to a blended rate of \$400 per hour.

(Kuredjian
Decl. ¶¶ 13-20.)

With the exception of the last case, Ex. I, all of the other cases were decided between the years 2020 and 2023. Ex. I was decided in 2024, and determined that \$400 was a reasonable blended rate. When adjusted for inflation, the Court finds Plaintiff’s requested billing rate in line with the cases cited.

Therefore, the Court does not reduce Plaintiff’s counsel’s requested hourly billing rate.

III.
Multiplier

Factors to be considered in applying a multiplier include “the quality of the representation, the novelty and complexity of the issues, the results obtained, and the contingent risk presented.” (Consumer Privacy Cases (2009) 175 Cal.App.4th 545, 556.)

Plaintiff argues that a multiplier is warranted because counsel took this case on a contingency basis. The Court does not find that the case was taken on contingency alone to warrant a multiplier. Rather, this was a relatively straightforward Song-Beverly Act case and Plaintiff has not demonstrated any novelty or

difficulty requiring additional skill warranting a multiplier.

Therefore, the Court denies Plaintiff's requested multiplier as unwarranted.

IV.

Costs

Plaintiff seeks \$740.35 in costs, comprised of filing and service fees.

(See Appendix 1 to Barahmand Decl.)

Filing and service fees are expressly recoverable, pursuant to Code of Civil Procedure section 1033.5, subdivision (b). Defendant does not challenge the requested costs.

Therefore, the Court awards Plaintiff's requested costs.

CONCLUSION AND ORDER

Therefore, the Court grants in part Plaintiff's request for attorneys' fees and costs in the total amount of \$5,627.85, representing \$4,887.50 in attorneys' fees and \$740.35 in costs.

Further, the Court will enter the proposed Order lodged on July 7, 2026 in conformity with the ruling.

Plaintiff shall provide notice of the Court's ruling and file the notice with a proof of service forthwith.

DATED: August 5, 2026 _____/s/_____

Michael
E. Whitaker

Judge
of the Superior Court